



CHAPTER 1

An Act to increase contributions and benefits under the National Insurance (Industrial Injuries) Acts, 1946 to 1957, and the National Insurance Acts, 1946 to 1957, to repeal section four of the Finance Act, 1947, to increase pensions under the Old Age Pensions Act, 1936, by an amount equal to the current value of tobacco tokens issued under the said section four and to amend the conditions of entitlement to benefit under the Industrial Diseases (Benefit) Acts, 1951 and 1954, payable to or in respect of a person who contracted the disease of byssinosis; and for purposes connected with the matters aforesaid.

[28th November, 1957]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) In Part I of the Second Schedule to the National Insurance (Industrial Injuries) Act, 1946 (hereafter in this Act referred to as "the Industrial Injuries Act"), the table of rates of contributions set out in the First Schedule to this Act shall be substituted, as from the appointed day, for the table of rates of contributions set out in the First Schedule to the National Insurance Act, 1954.

Higher rates,
etc., of
contributions
and benefits
under
Industrial
Injuries Act.

(2) The provisions of the Industrial Injuries Act specified in the first column of the Second Schedule to this Act (which relate

to the rates and amounts of benefit described in the second column of that Schedule) shall be amended, as from the appointed day, by substituting for the words and figures set out in the third column of that Schedule the corresponding words and figures set out in the fourth column thereof.

Higher rates,
etc., of
contributions
and benefits
under National
Insurance Act,
1946.

2.—(1) In the First Schedule to the National Insurance Act, 1946, the provisions set out in the Third Schedule to this Act (which relate to weekly rates of contributions payable by insured persons and employers and the amounts of the Exchequer supplement) shall be substituted, as from the appointed day, for the provisions set out in the Third Schedule to the National Health Service Contributions Act, 1957, and in Part V of the Third Schedule to the National Insurance Act, 1954.

(2) In the National Insurance Act, 1946, the provisions set out in Parts I and II of the Fourth Schedule to this Act (which relate to rates and amounts of benefit) shall be substituted, as from the appointed day, for the provisions set out in the Fourth Schedule to the National Insurance Act, 1954, as amended by paragraph 8 of the Schedule to the Family Allowances and National Insurance Act, 1956.

(3) The provisions of the National Insurance Act, 1957, specified in the first column of Part III of the Fourth Schedule to this Act (which relate to the rates of child's special allowance described in the second column of the said Part III) shall be amended, as from the appointed day, by substituting for the words in the third column of the said Part III the words in the fourth column thereof.

(4) The provisions of this section increasing retirement pensions shall not be taken as affecting the provisions of section seventy-four of the National Insurance Act, 1946, relating to non-contributory pensions.

Repeal of
tobacco relief
for pensioners
and equivalent
increase in
pensions under
Old Age
Pensions Act,
1936.

3.—(1) Section four of the Finance Act, 1947 (which provides for relief for pensioners in respect of increase in tobacco duty) shall cease to have effect on the appointed day as respects both Great Britain and Northern Ireland.

(2) As from the appointed day the weekly rate of pension calculated in accordance with the First Schedule to the Old Age Pensions Act, 1936, and payable to a person satisfying the statutory conditions under that Act shall be increased by two shillings and fourpence (that is to say by the value of the current weekly tobacco tokens issued in pursuance of the said section four of the Finance Act, 1947).

4.—(1) The provisions of the Industrial Injuries Act, the National Insurance Act, 1946, and the National Insurance Act, 1953, specified in the first column of the Fifth Schedule to this Act shall have effect, as from the appointed day, subject to the amendments specified in the second column of that Schedule, being amendments consequential on the amendments made by the preceding provisions of this Act. Consequential and minor amendments.

(2) In subsection (2) of section two of the Pneumoconiosis and Byssinosis Benefit Act, 1951 (which makes it a condition of the payment of benefit to or in respect of a person who contracted the disease of byssinosis that he has been employed for not less than twenty years in an occupation of the kind described in that subsection), for the words “twenty years” there shall, as from the passing of this Act, be substituted the words “ten years”, and a scheme under that Act may be made or amended so as to provide accordingly for the payment of benefit accruing after the passing of this Act or any later date specified in the scheme.

5.—(1) In this Act the expression “the appointed day” means, subject to the following provisions of this section, such day as the Minister may by order appoint, and different days may be appointed for different purposes of this Act or for the same purpose in relation to different cases or classes of case: Provisions as to appointed day.

Provided that the power of the Minister to make an order under this subsection shall, so far as relates to the repeal of section four of the Finance Act, 1947, and the provisions of the Sixth Schedule to this Act relating to regulations made under that section, be exercised in conjunction with the Treasury.

(2) Any order under this section may, if the day thereby appointed is appointed for some only of the purposes of this Act or in relation only to some cases or classes of case, contain such incidental or supplemental provisions as appear to the Minister to be necessary or expedient as respects the period or any part of the period when this Act is to have a partial operation only and, in particular, provisions modifying and supplementing, in relation to the period to which the order is to apply, the provisions of this Act or any Act amended by this Act.

(3) The power to make orders under this section shall be exercisable by statutory instrument and shall include power to vary or revoke any order so made by a subsequent order.

(4) The provisions of this Act shall take effect subject to the transitional provisions set out in the Sixth Schedule to this Act.

Expenses.

6. There shall be defrayed out of moneys provided by Parliament—

(a) any increase in the sums payable out of moneys so provided under—

(i) paragraph (b) of section two or subsection (1) of section sixty of the Industrial Injuries Act ; or

(ii) subsection (3) of section two of the National Insurance Act, 1946 (as amended by section one of the National Insurance Act, 1951), or subsection (1) of section thirty-eight of the National Insurance Act, 1946,

which is attributable to any provision made by this Act for increasing any rates or amounts of contributions or benefits under the Industrial Injuries Act or the National Insurance Act, 1946, and

(b) any increase in the sums payable out of moneys so provided under subsection (3) of section one of the Old Age Pensions Act, 1936, or in the expenses incurred in the administration of that Act, which is attributable to any provisions of this Act increasing pensions under the Old Age Pensions Act, 1936.

Regulations.

7.—(1) For the purposes—

(a) of any provision of the Industrial Injuries Act relating to regulations under the Industrial Injuries Act ;

(b) of any provision of the National Insurance Act, 1946, relating to regulations under the National Insurance Act, 1946 ; and

(c) of the Statutory Instruments Act, 1946,

regulations under this Act relating to the Industrial Injuries Act shall be treated as regulations under the Industrial Injuries Act and regulations under this Act relating to the National Insurance Act, 1946, shall be treated as regulations under the National Insurance Act, 1946.

(2) Section seventy-seven of the National Insurance Act, 1946 (which requires a preliminary draft of regulations to be submitted to the National Insurance Advisory Committee before the regulations are made or, in certain cases, before a draft thereof is laid before Parliament), shall not apply to any regulations made, or to any draft of regulations laid before Parliament, before the expiration of the period of six months beginning with the date of the passing of this Act if the instrument containing the regulations or, as the case may be, the draft of that instrument states that the regulations are made in consequence of this Act.

8.—(1) This Act may be cited as the National Insurance (No. 2) Act, 1957.

Short title,
construction,
citation, extent
and repeals.

(2) This Act—

- (a) so far as it relates to the Industrial Injuries Act, shall be construed as one with that Act and shall be included among the Acts referred to in citing the National Insurance (Industrial Injuries) Acts, 1946 to 1957, and
- (b) so far as it relates to the National Insurance Act, 1946, shall be construed as one with that Act and shall be included among the Acts referred to in citing the National Insurance Acts, 1946 to 1957, and
- (c) so far as it relates to the Old Age Pensions Act, 1936, shall be construed as one with that Act,

and without prejudice to the generality of the foregoing provisions of this subsection with respect to the construction of this Act, subsection (1) of section four of the National Insurance Act, 1954 (which relates to the making under the National Insurance Act, 1946, of regulations relating to the provisions of the said Act of 1954), shall have effect for the purposes of this Act as if any reference in that subsection to the said Act of 1954 were a reference to this Act.

(3) Save as otherwise expressly provided, and without prejudice to the operation, in relation to any matters arising out of this Act, of any provision relating to Northern Ireland contained in the Industrial Injuries Act or in the National Insurance Act, 1946, or in the Pneumoconiosis and Byssinosis Benefit Act, 1951, this Act shall not extend to Northern Ireland.

(4) Section four of the Finance Act, 1947, and subsection (7) of section one of the Finance Act, 1948, shall be repealed as from the appointed day but subject to the provisions of the Sixth Schedule to this Act.

This subsection extends to Northern Ireland.

(5) Any reference in this Act to any enactment is a reference to that enactment as amended by or under any Act.

SCHEDULES

Section 1.

FIRST SCHEDULE

TABLE TO BE SUBSTITUTED IN PART I OF SECOND
SCHEDULE TO INDUSTRIAL INJURIES ACTWEEKLY RATES OF CONTRIBUTIONS PAYABLE BY INSURED
PERSONS AND EMPLOYERS

Class of insured person to whom rate applies	Weekly rate of contribution	
	By the insured person	By the employer
Men over the age of 18 ...	8d.	9d.
Women over the age of 18 ...	5d.	6d.
Boys under the age of 18 ...	4d.	5d.
Girls under the age of 18 ...	3d.	3d.

Section 1.

SECOND SCHEDULE

AMENDMENTS OF BENEFIT PROVISIONS OF INDUSTRIAL
INJURIES ACT

(The references to the various provisions are references to those provisions as amended by the Second Schedule to the National Insurance Act, 1954, and any other enactments specifically mentioned)

Provision of Industrial Injuries Act	Description of rates and amounts of benefit	Existing rate or amount	New rate or amount
Section 11 (3)	Weekly rates of injury benefit— (a) for beneficiaries over 18 or with dependants, (b) for beneficiaries between 17 and 18 without dependants, (c) for beneficiaries under 17 without dependants.	Sixty-seven shillings and sixpence. Fifty shillings and eightpence. Thirty-three shillings and ninepence.	Eighty-five shillings. Sixty-three shillings and ninepence. Forty-two shillings and sixpence.
Section 12 (6)	Maximum amount of disablement gratuity for disablement of less than 20 per cent.	Two hundred and twenty-five pounds.	Two hundred and eighty pounds.

Provision of Industrial Injuries Act	Description of rates and amounts of benefit	Existing rate or amount	New rate or amount
Third Schedule (applied by s. 12 (7)).	Weekly rates of disablement pension for degrees of disablement of—		
	100 per cent.	67 shillings and 6 pence.	85 shillings.
	90 per cent.	60 shillings and 9 pence.	76 shillings and 6 pence.
	80 per cent.	54 shillings.	68 shillings.
	70 per cent.	47 shillings and 3 pence.	59 shillings and 6 pence.
	60 per cent.	40 shillings and 6 pence.	51 shillings.
	50 per cent.	33 shillings and 9 pence.	42 shillings and 6 pence.
	40 per cent.	27 shillings.	34 shillings.
	30 per cent.	20 shillings and 3 pence.	25 shillings and 6 pence.
	20 per cent.	13 shillings and 6 pence.	17 shillings.
Section 13 (1)	Amounts by which weekly rates of disablement pension are increased on account of unemployability— (a) for beneficiaries over 18 or with dependants, (b) for beneficiaries under 18 without dependants.	Forty shillings. Twenty-three shillings.	Fifty shillings. Twenty-eight shillings and sixpence.
Section 14 (1) (as amended by s. 1 of National Insurance (Industrial Injuries) Act, 1948).	Maximum amount of increase of weekly rate of disablement pension in cases of special hardship.	Twenty-seven shillings and sixpence.	Thirty-four shillings.
Section 15 (2)	Maximum amount of increase of weekly rate of disablement pension where constant attendance is needed— (a) in cases other than those of exceptionally severe disablement, (b) in cases of exceptionally severe disablement.	Thirty shillings. Sixty shillings.	Thirty-five shillings. Seventy shillings.
Section 17 (1) (as amended by s. 3 of National Insurance Act, 1951).	Amount of increase of weekly rates of injury benefit or (in certain cases) disablement pension— (a) in respect of only, elder or eldest child, (b) in respect of each child other than the elder or eldest.	Eleven shillings and sixpence. Three shillings and sixpence.	Fifteen shillings. Seven shillings.
Section 18 (1)	Amount of increase of weekly rates of injury benefit or (in certain cases) disablement pension in respect of adult dependant.	Twenty-five shillings.	Thirty shillings.

2ND SCH.
—cont.

Provision of Industrial Injuries Act	Description of rates and amounts of benefit	Existing rate or amount	New rate or amount
Section 19 (3)	Weekly rate of widow's pension payable in circumstances specified in the subsection.	Forty-five shillings.	Fifty-six shillings.
Section 19 (4)	Maximum higher weekly rate of widow's pension payable for prescribed period after deceased's death.	Fifty-five shillings.	Seventy shillings
Section 20 (2)	Weekly rate of widower's pension.	Forty-five shillings.	Fifty-six shillings.
Section 21 (1) (as amended by s. 3 of National Insurance Act, 1951, and s. 2 of Family Allowances and National Insurance Act, 1956).	Weekly rate of death benefit— (a) in respect of only, elder or eldest child,	Eleven shillings and sixpence.	Fifteen shillings.
	(b) in respect of each child other than the elder or eldest.	Three shillings and sixpence.	Seven shillings.

THIRD SCHEDULE

Section 2.

PROVISIONS TO BE SUBSTITUTED IN FIRST SCHEDULE TO
NATIONAL INSURANCE ACT, 1946

CONTRIBUTION RATES

PART I

Employed Persons

Description of employed person	Weekly Rate of Contribution
	s. d.
Men between the ages of 18 and 70 (not including men over the age of 65 who have retired from regular employment)—	
Earning remuneration at a weekly rate exceeding 60s.	7 4½
Earning remuneration at a weekly rate of 60s. or less	3 10½
Women between the ages of 18 and 65 (not including women over the age of 60 who have retired from regular employment)—	
Earning remuneration at a weekly rate exceeding 60s.	6 2½
Earning remuneration at a weekly rate of 60s. or less	3 4½
Boys under the age of 18	4 2½
Girls under the age of 18	3 6½

For the purposes of this Part and Part II of this Schedule a person shall be deemed to be earning remuneration at a weekly rate of sixty shillings or less if, but only if, his remuneration does not include the provision of board and lodging by the employer and the rate of the remuneration neither exceeds nor is deemed in accordance with regulations made under subsection (5) of section seventy-eight of this Act to exceed sixty shillings a week, and to be earning remuneration at a weekly rate exceeding sixty shillings in any other case.

3RD SCH.
—cont.PART II
Employers

Description of employed person	Weekly Rate of Contribution
	s. d.
Men over the age of 18—	
Earning remuneration at a weekly rate exceeding 60s. or not being liable to pay a contribution as an employed person	7 0½
Earning remuneration at a weekly rate of 60s. or less and being liable to pay a contribution as an employed person	10 6½
Women over the age of 18—	
Earning remuneration at a weekly rate exceeding 60s. or not being liable to pay a contribution as an employed person	5 9½
Earning remuneration at a weekly rate of 60s. or less and being liable to pay a contribution as an employed person	8 7½
Boys under the age of 18	4 0½
Girls under the age of 18	3 3½

For the purpose of this Part of this Schedule a person over pensionable age, not being an insured person, shall be treated as an employed person if he would be an insured person were he under pensionable age and would be an employed person were he an insured person.

PART III
Self-Employed Persons

Description of self-employed person	Weekly Rate of Contribution
	s. d.
Men between the ages of 18 and 70 (not including men over the age of 65 who have retired from regular employment)	9 10
Women between the ages of 18 and 65 (not including women over the age of 60 who have retired from regular employment)	8 4
Boys under the age of 18	5 7
Girls under the age of 18	4 9

PART IV
Non-Employed Persons

3RD SCH.
—cont.

Description of non-employed person	Weekly Rate of Contribution
	s. d.
Men between the ages of 18 and 65	7 5
Women between the ages of 18 and 60	5 11
Boys under the age of 18	4 3
Girls under the age of 18	3 4

PART V
Exchequer Supplement

Description of person by or in respect of whom contribution is paid	Amount of Supplement			
	For contribution as employed person	For employer's contribution	For contribution as self- employed person	For contribution as non- employed person
	s. d.	s. d.	s. d.	s. d.
Men over the age of 18	1 3	1 2	3 3	2 6
Women over the age of 18	1 0	1 0	2 9	2 0
Boys under the age of 18	8	8	1 10	1 5
Girls under the age of 18	7	7	1 7	1 1

Section 2.

FOURTH SCHEDULE

RATES OF BENEFIT UNDER NATIONAL INSURANCE ACT, 1946

PART I

Rates of Periodical Benefits and of Increases for Dependants

Description of benefit	Weekly rate		Increase for only child or elder or eldest child (where payable)		Increase for each additional child (where payable)		Increase for adult dependant (where payable)	
	s.	d.	s.	d.	s.	d.	s.	d.
1. Unemployment benefit—								
(a) in the case of a person over the age of eighteen, not being a married woman	50	0	15	0	7	0	30	0
(b) in the case of a person under the age of eighteen, not being a married woman—								
(i) during any period during which that person is entitled to an increase of benefit in respect of a child or adult dependant	50	0	15	0	7	0	30	0
(ii) during any other period	28	6	—		—		—	
(c) in the case of a married woman over the age of eighteen—								
(i) during any period during which she is entitled to an increase of benefit in respect of her husband, or during which she is not residing with and is unable to obtain any financial assistance from her husband	50	0	15	0	7	0	30	0
(ii) during any other period	34	0	15	0	7	0	30	0
(d) in the case of a married woman under the age of eighteen—								
(i) during any period during which she is entitled to an increase of benefit in respect of her husband, or during which she is entitled to an increase of benefit in respect of a child or an adult dependant other than her husband and she is not residing with and is unable to obtain any financial assistance from her husband	50	0	15	0	7	0	30	0

4TH SCH.
—cont.

Description of benefit	Weekly rate	Increase for only child or elder or eldest child (where payable)	Increase for each additional child (where payable)	Increase for adult dependant (where payable)
	s. d.	s. d.	s. d.	s. d.
(ii) during any other period during which she is entitled to an increase of benefit in respect of a child or adult dependant	34 0	15 0	7 0	30 0
(iii) during any other period	28 6	—	—	—
2. Sickness benefit—				
(a) in the case of a person over the age of eighteen, not being a married woman	50 0	15 0	7 0	30 0
(b) in the case of a person under the age of eighteen, not being a married woman—				
(i) during any period during which that person is entitled to an increase of benefit in respect of a child or adult dependant	50 0	15 0	7 0	30 0
(ii) during any other period	28 6	—	—	—
(c) in the case of a married woman over the age of eighteen—				
(i) during any period during which she is entitled to an increase of benefit in respect of her husband, or during which she is not residing with and is unable to obtain any financial assistance from her husband	50 0	15 0	7 0	30 0
(ii) during any other period	34 0	15 0	7 0	30 0
(d) in the case of a married woman under the age of eighteen—				
(i) during any period during which she is entitled to an increase of benefit in respect of her husband, or during which she is entitled to an increase of benefit in respect of a child or an adult dependant other than her husband and she is not residing with and is unable to obtain any financial assistance from her husband	50 0	15 0	7 0	30 0

4TH SCH.
—cont.

Description of benefit	Weekly rate	Increase for only child or elder or eldest child (where payable)	Increase for each additional child (where payable)	Increase for adult dependant (where payable)
	s. d.	s. d.	s. d.	s. d.
(ii) during any other period during which she is entitled to an increase of benefit in respect of a child or adult dependant	34 0	15 0	7 0	30 0
(iii) during any other period	28 6	—	—	—
3. Maternity allowance ...	50 0	15 0	7 0	30 0
4. Widow's allowance	70 0	20 0	12 0	—
5. Widowed mother's allowance				
(a) where payable by virtue of the widow's having a family ...	70 0	—	12 0	—
(b) in any other case ...	50 0	—	—	—
6. Widow's pension	50 0	—	—	—
7. Guardian's allowance ...	27 6	—	—	—
8. Retirement pension—				
(a) where the pension is payable to a woman by virtue of her husband's insurance and he is alive	30 0	15 0	7 0	—
(b) in any other case ...	50 0	15 0	7 0	30 0

Note.—The increases of maternity allowance specified in the third, fourth and fifth columns above apply only in so far as provided for by regulations under section eight of the National Insurance Act, 1953.

PART II

Amount of Grants

Description of Grant	Amount
	£ s. d.
1. Maternity grant	12 10 0
2. Home confinement grant	5 0 0
3. Death grant, where the person in respect of whose death the grant is paid was at his death—	
(a) under the age of three	7 10 0
(b) between the ages of three and six	12 10 0
(c) between the ages of six and eighteen	18 15 0
(d) over the age of eighteen	25 0 0

PART III

*Child's Special Allowance*4TH SCH.
—cont.

	Description of rates	Existing rate	New rate
Section 5 (3) (b) of National Insurance Act, 1957.	Weekly rate of allowance (if not in excess of weekly rate of contributions previously made by deceased husband)— (a) in respect of only, elder or eldest child, (b) in respect of each child other than the elder or eldest.	Sixteen shillings and sixpence. Eight shillings and sixpence.	Twenty shillings. Twelve shillings.

FIFTH SCHEDULE

Section 4.

CONSEQUENTIAL AMENDMENTS OF INDUSTRIAL INJURIES ACT, NATIONAL INSURANCE ACT, 1946, AND NATIONAL INSURANCE ACT, 1953

Amended provision	Amendment
Industrial Injuries Act— Section 14... ..	In subsection (3) (as set out in the Schedule to the National Insurance (Industrial Injuries) Act, 1948, and amended by the Fifth Schedule to the National Insurance Act, 1954), for the words “sixty-seven shillings and sixpence” there shall be substituted the words “eighty-five shillings”.
Section 21... ..	In subsection (1), in the words inserted by paragraph 10 of the Schedule to the Family Allowances and National Insurance Act, 1956, for the words “sixteen shillings and sixpence” there shall be inserted the words “twenty shillings”.
Section 29... ..	In paragraph (a) of subsection (1) (as amended by the National Insurance (Industrial Injuries) Act, 1948, and the Fifth Schedule to the National Insurance Act, 1954) for the words “sixty-seven shillings and sixpence” in both places where those words occur, there shall be substituted the words “eighty-five shillings”; for the words “fifty shillings and eightpence” there shall be substituted the words “sixty-three shillings and ninepence”; and for the words “thirty-three shillings and ninepence” there shall be substituted the words “forty-two shillings and sixpence”.
Section 30... ..	In subsection (2) (as amended by the Schedule to the National Insurance Act, 1951, and the said Fifth Schedule) for the words “eleven shillings and sixpence”, there shall be substituted the words “fifteen shillings”.

5TH SCH.
—cont.

Amended provision	Amendment
Industrial Injuries Act —cont.	
Fourth Schedule ...	In paragraph 1 (as amended by the Schedule to the National Insurance Act, 1951, and the said Fifth Schedule), in sub-paragraph (1) for the words “eleven shillings and sixpence” and the words “three shillings and sixpence” there shall be substituted respectively the words “fifteen shillings” and the words “seven shillings”, and in sub-paragraph (2) for the words “eleven shillings and sixpence” there shall be substituted the words “fifteen shillings”.
National Insurance Act, 1946—	
Section 17... ..	In head (i) of paragraph (b) of subsection (1) and in the proviso to subsection (3) (as set out in paragraph 1 and paragraph 3 of the Schedule to the Family Allowances and National Insurance Act, 1956) for the words “sixteen shillings and sixpence” there shall be substituted the words “twenty shillings”.
Section 23... ..	In paragraph (b) of subsection (3) (as set out in the Schedule to the National Insurance Act, 1951 and amended by the Fifth Schedule to the National Insurance Act, 1954) for the words “eleven shillings and sixpence” there shall be substituted the words “fifteen shillings”, and for the words “three shillings and sixpence” there shall be substituted the words “seven shillings”.
Section 72... ..	In subsection (2) for the words “ten pounds” there shall be substituted the words “twelve pounds ten shillings” and for the words “twenty pounds” there shall be substituted the words “twenty-five pounds”.
National Insurance Act, 1953—	
Section 8	In subsection (3) (as amended by the Fifth Schedule to the National Insurance Act, 1954) for the words “eleven shillings and sixpence” there shall be substituted the words “fifteen shillings”, for the words “three shillings and sixpence” there shall be substituted the words “seven shillings”, and for the words “twenty-five shillings” there shall be substituted the words “thirty shillings”.

SIXTH SCHEDULE

Sections 5, 8.

TRANSITIONAL PROVISIONS

*Effect of awards made before, or in respect of the period
beginning before, appointed or prescribed day*

1.—(1) Where an award of any benefit under the Industrial Injuries Act, or the National Insurance Act, 1946, or the Old Age Pensions Act, 1936, has been made, whether before or after the passing of this Act, before the day appointed or prescribed for the payment of benefit of the description to which the award relates at a higher weekly rate by virtue of this Act or any regulations made in consequence of this Act, the benefit shall, without any claim being made therefor, become payable (except as respects any period falling before that day), at the higher weekly rate, and the award shall have effect accordingly.

(2) The foregoing sub-paragraph shall have effect as respects any benefit under the Industrial Injuries Act or the National Insurance Act, 1946, subject to such exceptions or conditions as may be prescribed by regulations made by the Minister, and the power to make regulations under this sub-paragraph shall be exercised separately in relation to the Industrial Injuries Act and the National Insurance Act, 1946.

(3) Where any such award as is mentioned in sub-paragraph (1) of this paragraph—

(a) is made after a day has been appointed or prescribed for the payment of benefit of the description to which the award relates at a higher weekly rate or within a higher maximum weekly rate, by virtue of this Act or any regulations made in consequence of this Act; and

(b) is made before that day,

the award may provide for the benefit to be paid, as from that day, at the higher weekly rate or, as the case may be, at any weekly rate within the higher maximum rate.

Variation of disablement gratuities

2. Any regulations made in consequence of this Act varying the scale of disablement gratuities prescribed under subsection (6) of section twelve of the Industrial Injuries Act may provide that the scale as varied shall only apply in cases where the period taken into account by the assessment of the extent of the disablement in respect of which the gratuity is awarded begins or began after such day as may be prescribed.

Maternity and home confinement grants and death grants

3.—(1) The provisions of this Act increasing maternity or home confinement grants or death grants shall not affect the amount of such a grant where the confinement or, as the case may be, the death occurred before the appointed day.

(2) The provisions of this Act increasing maternity grants shall not affect the amount of any maternity grant to which a woman has become entitled before the appointed day by virtue of regulations made under subsection (4) of section fourteen of the National Insurance Act, 1946, as set out in the First Schedule to the National Insurance Act, 1953:

6TH SCH.
—cont.

Provided that regulations made by the Minister may provide for increasing to the amount provided for by this Act the amount of a maternity grant to which a woman has become entitled before the appointed day (whether payment has already been made or not) if the confinement in question has not occurred before the appointed day and her pregnancy has not been otherwise terminated before that day.

Withdrawal of tobacco relief

4.—(1) Any token issued in pursuance of regulations made under section four of the Finance Act, 1947, shall be invalid if the date shown on the token falls on or after the appointed day.

(2) The latest date on which a valid token may be accepted by a dealer in respect of the supply of tobacco shall be the twenty-eighth day of February, nineteen hundred and fifty-eight, or, if the appointed day falls after the thirty-first day of January in that year, the date falling one month after the appointed day.

(3) The latest date on which tokens may be surrendered by a dealer in pursuance of the said regulations shall be the thirty-first day of March, nineteen hundred and fifty-eight, or, if the appointed day falls after the thirty-first day of January in that year, the date falling two months after the appointed day.

(4) If any tokens in respect of which a dealer has received a payment from the Commissioners of Customs and Excise are invalid, the said Commissioners may recover the amount paid in respect of the invalid tokens in proceedings commenced not later than three months after the date on which those tokens were surrendered by the dealer in pursuance of the said regulations.

(5) Without prejudice to the provisions of the Interpretation Act, 1889, with respect to the effect of repeals, any regulations under the said section four of the Finance Act, 1947, which are in force on the appointed day shall, subject to the provisions of this paragraph, continue to apply—

(a) in relation to any token issued before that day; and

(b) in relation to any token the date shown on which falls before that day but which is issued on or after that day and before the date specified in sub-paragraph (2) of this paragraph.

(6) This paragraph extends to Northern Ireland.



Table of Statutes referred to in this Act

Short Title	Session and Chapter
Interpretation Act, 1889	52 & 53 Vict. c. 63.
Old Age Pensions Act, 1936	26 Geo. 5 & 1 Edw. 8. c. 31.
Statutory Instruments Act, 1946	9 & 10 Geo. 6. c. 36.
National Insurance (Industrial Injuries) Act, 1946	9 & 10 Geo. 6. c. 62.
National Insurance Act, 1946	9 & 10 Geo. 6. c. 67.
Finance Act, 1947	10 & 11 Geo. 6. c. 35.
National Insurance (Industrial Injuries) Act, 1948	11 & 12 Geo. 6. c. 42.
Finance Act, 1948	11 & 12 Geo. 6. c. 49.
National Insurance Act, 1951	14 & 15 Geo. 6. c. 34.
Pneumoconiosis and Byssinosis Benefit Act, 1951	15 & 16 Geo. 6 & 1 Eliz. 2. c. 4.
National Insurance Act, 1953	1 & 2 Eliz. 2. c. 29.
National Insurance Act, 1954	3 & 4 Eliz. 2. c. 1.
Family Allowances and National Insurance Act, 1956	4 & 5 Eliz. 2. c. 50.
National Insurance Act, 1957	5 & 6 Eliz. 2. c. 26.
National Health Service Contributions Act, 1957	5 & 6 Eliz. 2. c. 34.

PRINTED BY SIR JOHN ROUGHTON SIMPSON, C.B.

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